

Mutual Non-Disclosure Agreement

Acme Industries, Inc. and Bluefin Analytics, LLC

1. Parties

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into as of March 3, 2026 between Acme Industries, Inc., a Delaware corporation ("Acme"), and Bluefin Analytics, LLC, a Texas limited liability company ("Bluefin"). Each of Acme and Bluefin may be a disclosing party or a receiving party under this Agreement.

2. Purpose

The parties wish to evaluate a potential engagement under which Bluefin would provide supply-chain forecasting services to Acme (the "Purpose"). The receiving party shall use Confidential Information solely for the Purpose and for no other reason.

3. Confidential Information

"Confidential Information" means any non-public business, technical, or financial information disclosed by one party to the other, in any form, that is marked as confidential or that a reasonable person would understand to be confidential. Confidential Information does not include information that is or becomes public through no fault of the receiving party, was lawfully known to the receiving party before disclosure, or is independently developed without use of the disclosing party's information.

4. Mutual Obligations

Obligations under this Agreement are mutual and apply equally to both parties. Each receiving party shall protect the disclosing party's Confidential Information using at least the same degree of care it uses for its own confidential information, and no less than reasonable care, and shall limit access to its employees and advisors who need to know it for the Purpose and who are bound by written confidentiality duties at least as protective as these.

5. Personal Data

Neither party shall disclose personal data to the other under this Agreement unless the parties have first signed a data processing addendum that governs that personal data.

6. Compelled Disclosure

If a receiving party is required by law, regulation, subpoena, or court order to disclose Confidential Information, it may make that disclosure to the extent required, and shall use reasonable efforts to obtain confidential treatment of the information disclosed.

7. Return of Materials

Within thirty (30) days after the disclosing party's written request, the receiving party shall return or destroy all Confidential Information in its possession, except that the receiving party may retain one archival copy solely for the purpose of demonstrating compliance with this Agreement.

8. Term

This Agreement governs disclosures made during the one (1) year period following its effective date. The receiving party's confidentiality obligations shall survive for four (4) years from the date of each disclosure.

9. Non-Solicitation

During the term of this Agreement, neither party shall directly solicit for employment any employee of the other party with whom it had contact in connection with the Purpose. General advertisements not targeted at such employees are not a breach of this section.

10. No License

Nothing in this Agreement grants either party any license or right under any patent, copyright, trade secret, or other intellectual property of the other party, except the limited right to use Confidential Information for the Purpose.

11. Governing Law

This Agreement is governed by the laws of the State of Texas, without regard to its conflict-of-laws principles. The state and federal courts located in Travis County, Texas shall have exclusive jurisdiction over any dispute arising under this Agreement.

12. Miscellaneous

This Agreement is the entire agreement between the parties about its subject matter and may be amended only in a writing signed by both parties. Neither party may assign this Agreement without the other party's prior written consent.

ACME INDUSTRIES, INC. By: _____ Name: Dana Whitfield Title: General Counsel

BLUEFIN ANALYTICS, LLC By: _____ Name: Marcus Hale Title: Chief Executive Officer